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**JUDGMENT SHEET**

**IN THE LAHORE HIGH COURT LAHORE**  
(JUDICIAL DEPARTMENT)

**Writ Petition No.27534 of 2026**

***Muhammad Abbas***

*Versus*

***Federation of Pakistan through Secretary Interior and others***

Petitioner by:- Mian Muhammad Naseem, Advocate.  
Respondents by: Mr. Nauman Khalid, Assistant Attorney General for the Federation of Pakistan with William John, Sub-Inspector, Federal Investigation Agency (Shift Incharge at Sialkot International Airport, Sialkot).

Dates of hearing: - **20.05.2026**

**JUDGMENT**

**RAHEEL KAMRAN, J.:** The petitioner is aggrieved by his off-loading at Sialkot International Airport, Sialkot, while he was travelling to Nigeria on 31.01.2026 despite having a valid visa, return ticket and other travel documents.

2. Learned counsel for the petitioner contends that the petitioner was in possession of all requisite travel documents including a valid passport, Nigerian visit visa and return air ticket. It is asserted that after verification of his travel documents, the concerned airline issued him a boarding card and the immigration counter also stamped his passport for exit. However, subsequently, the Shift Incharge Immigration Departure, Sialkot International Airport, Sialkot, off-loaded him on the ground that he was not permitted to travel to Nigeria, allegedly on the apprehension that he would skip at Dubai and would not return to Pakistan. Learned

counsel maintains that he possessed a valid visa, return ticket, travelling documents and sufficient money and that his off-loading was arbitrary, unlawful and without justifiable reason. He adds that the petitioner suffered considerable financial loss, mental agony and disgrace. He submits that neither any criminal case, inquiry, blacklisting order nor any order placing the petitioner on the Exit Control List was pending against him. It is argued that the petitioner had disclosed a legitimate purpose of visit, i.e., to visit his brother-in-law who is residing and working in Nigeria and therefore, the respondents had no lawful justification to prevent him from travelling. Learned counsel further submits that the off-loading proforma does not contain any intelligible or specific reason, rather vague expressions have been used to justify an otherwise arbitrary action. He submits that such unstructured and unguided discretion is violative of Articles 4, 9, 10-A and 15 of the Constitution of the Islamic Republic of Pakistan, 1973.

3. Conversely, learned Assistant Attorney General while relying upon the report and para-wise comments submitted on behalf of respondents No.4 to 6, submits that the petitioner was off-loaded because he neither possessed the requisite funds nor was able to justify the purpose of his travel. It is contended that FIA does not arbitrarily off-load passengers merely because they are travelling abroad, rather, each case is examined on its own facts. Learned law officer submits that the immigration authorities are competent to scrutinize travel documents, financial capacity, purpose of travel and other relevant circumstances in order to prevent illegal migration and abuse of visit visas. He further submits that the petitioner can travel if he fulfills the requirements for visiting Nigeria including sufficient funds, confirmed return ticket and other requisite documents. It is maintained that the impugned action was taken in good faith and in accordance with the applicable procedure.

4. Arguments heard. Available record perused with the assistance of learned counsel for the parties.

5. The controversy involved in the case in hand relates to the legality and manner of exercise of administrative authority by the officials of Federal Investigation Agency (“FIA”) in preventing the petitioner from travelling from Pakistan. In order to examine the legality of the impugned action, it would be advantageous to briefly advert to the constitutional framework governing the fundamental right to movement and travel abroad as guaranteed under the Constitution of the Islamic Republic of Pakistan, 1973 (“the Constitution”). Article 4 of the Constitution mandates that every individual shall be dealt with in accordance with law and that no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law. Article 9 provides that no person shall be deprived of life or liberty save in accordance with law. Article 10-A guarantees due process and fair treatment in matters affecting civil rights and obligations. Article 15 ensures freedom of movement, subject only to reasonable restrictions imposed by law in the public interest. Through consistent judicial pronouncements, the expression ‘freedom of movement’ occurring in Article 15 has received an expansive interpretation so as to encompass the right of a citizen to travel abroad and to return to his country, subject, however, to lawful and reasonable restrictions imposed in the public interest. Reference in this regard may be made to the cases of “Government of Pakistan and another v. Dada Amir Haider Khan” (PLD 1987 SC 504), “Mian Muhammad Nawaz Sharif v. President of Pakistan” (PLD 1993 SC 473), “Pakistan Muslim League (N) through Khawaja Muhammad Asif, M.N.A. and others v. Federation of Pakistan through Secretary Ministry of Interior and others” (PLD 2007 SC 642), “Federation of Pakistan v. General (Retd.) Pervez Musharraf” (PLD 2016 SC 570), “Federal Government v. Ayyan Ali” (2017 SCMR 1179).

6. In the case of “Ali Muhammad Turab v. Federation of Pakistan and 2 others” (PLD 2020 Islamabad 454), the Islamabad High Court while making reference to the *ratio decidendi* in various judgments of the superior Courts as well as the principles embodied in the Universal

Declaration of Human Rights, reiterated that the right to travel abroad is a fundamental protection or right intrinsically linked with the constitutional guarantees of liberty and freedom of movement. The relevant extract from the said judgment is reproduced below for reference:-

*“8. Freedom to travel abroad is a fundamental protection or right available to a person under Articles 4, 9 and 15 of the Constitution. The grant of such right is certainly subject to restrictions placed by due process of law. Exit from Pakistan (Control) Ordinance, 1981, sets out the process of law by which a restriction could be placed on a person's right to travel abroad.*

*9. The Universal Declaration of Human Rights which was adopted by the United Nations General Assembly on 10.12.1948 and for which Pakistan voted, provides for freedom of movement within each State and also across its frontiers in either direction. Article 3 of the said Declaration is based on the general principle that, "everyone has the right to life, liberty and security of person." Article 13 deals with freedom of movement, and reads thus:*

*"Article 13 (1) Everyone has the right to freedom of movement and residence within the borders of each State.*

*(2) Everyone has the right to leave any country including his own and to return to his country."*

*10. Article 13 of the Universal Declaration of Human Rights is akin to Articles 9 and 15 of our Constitution. Since there is no inconsistency between Article 13 of the Universal Declaration of Human Rights and the provisions of our Constitution, the former can be cited and relied upon before Courts in Pakistan."*

7. There can be no cavil to the proposition that the constitutional protection guaranteeing freedom to travel abroad is not absolute and remains subject to restrictions imposed in accordance with law. Therefore, before examining the validity of the impugned action, it is necessary to briefly examine the different mechanisms through which a person may be restrained from travelling abroad from Pakistan. The first one is the Exit Control List ("ECL") under the provisions of the Exit from Pakistan (Control) Ordinance, 1981 and rules framed thereunder, whereby such persons may be restrained from leaving the country in public interest or in connection with criminal proceedings, inquiries or other matters recognized by law. The second category consists of

persons whose names are placed on the Passport Control List (“PCL”), maintained by the Directorate General Immigration and Passports under the administrative control of the Ministry of Interior. Admittedly, the petitioner does not fall within either of the aforesaid categories as neither his name was placed on the ECL nor on the PCL. The case in hand pertains to the third category where a passenger is off-loaded by the immigration authorities as a preventive or regulatory measure during the process of immigration clearance at the airport. Such authority is traceable to Standing Order No.31 of 2005 issued by the Federal Investigation Agency (“FIA”), which prescribes the duties, powers and procedure to be followed by immigration officials at international airports. The object of the said Standing Order is to streamline immigration functions and to enable the authorities to scrutinize passengers whose travel profile appears inconsistent with the declared purpose of visit or otherwise raises suspicion regarding illegal migration, human smuggling, trafficking or abuse of visit visas. The FIA Risk Analysis Unit has also developed and circulated standardized interview questions through Letter No.FIA/IMMGN/RAU/2024/3010 dated 05.08.2024 in order to assist immigration staff in identifying persons suspected of travelling abroad for organized beggary and other unlawful purposes, while at the same time ensuring that the screening process is conducted in a structured, fair and non-arbitrary manner. The Annual Administration Report, 2024 of the FIA also reflects the establishment of a ‘2nd Line Immigration Control System’ at major airports for improved profiling and detection of fraudulent travellers. Nonetheless, notwithstanding the existence of such regulatory framework and preventive mechanisms, the exercise of authority by immigration officials must remain subject to the constitutional guarantees of fairness, transparency, proportionality and due process. Since the right to travel abroad forms part of the constitutional guarantee of freedom of movement, any restriction placed thereupon must satisfy the test of reasonableness and must be structured by adequate safeguards against

arbitrary, capricious or disproportionate exercise of power. The regulatory framework governing immigration control, therefore, cannot be construed as conferring unfettered discretion to restrain a citizen's liberty on the basis of conjectures, vague apprehensions or unsubstantiated suspicion. Guidance in this respect is found in the case of *Pakistan Muslim League (N) through Khawaja Muhammad Asif (supra)*.

8. The pivotal question in the present case is not whether the immigration authorities possess the power to scrutinize passengers or to off-load a traveller in an appropriate case. Such authority, as already observed, may legitimately be exercised to prevent illegal migration, human smuggling, visa abuse or other unlawful activities. The real issue requiring determination is whether the impugned action, in the peculiar facts of the present case, satisfies the constitutional and legal standards of fairness, transparency, rationality and reasoned decision-making. The respondents seek to justify the petitioner's off-loading on two grounds, i.e., that he was not carrying sufficient funds and that he failed to satisfactorily explain the purpose of his visit to Nigeria. Both considerations may ordinarily fall within the permissible domain of immigration scrutiny. However, the legality of an administrative action is not tested merely by the nomenclature of the reasons assigned but by the substance, particulars and objective material supporting such reasons.

9. A careful examination of the off-loading proforma, report and para-wise comments reveals that the reasons assigned against the petitioner are expressed in a vague, generalized and conclusory manner without disclosure of the factual foundation upon which such conclusions were reached. The respondents have nowhere specified the amount of money which the petitioner was actually carrying, the nature of the currency in his possession, whether he disclosed access to any banking facility, international debit or credit arrangement, digital financial access or support from a host residing abroad and what precise deficiency was noticed by the immigration authorities. Equally absent is

any indication regarding the minimum financial threshold which, according to the respondents, was necessary for travel to Nigeria. No law, notification, policy guideline, advisory or standard operating procedure has been produced before this Court prescribing any fixed monetary requirement for a Pakistani citizen travelling to Nigeria on a visit visa. In absence of such disclosed criteria, the expression “insufficient funds” becomes entirely subjective and incapable of objective judicial scrutiny.

**10.** The requirement of recording reasons cannot be treated as a mere procedural ritual or empty formality. Reasons constitute the live and intelligible link between the material considered by the authority and the conclusion ultimately reached. They demonstrate application of mind, restrain arbitrary exercise of power, enable the affected person to understand the basis of adverse action and facilitate meaningful judicial review. The concept of reasoned decision-making has now become an integral component of constitutional governance and administrative fairness. Section 24-A of the General Clauses Act, 1897 expressly mandates that where a statute confers power upon a public authority to make an order or issue a direction, such power shall be exercised reasonably, fairly, justly and for advancement of the purposes of law. The said provision further obligates the authority to adequately disclose reasons for its action. In the case of “Messrs Airport Support Services v. The Airport Manager, Quaid-e-Azam International Airport, Karachi and others” (1998 SCMR 2268), the Supreme Court of Pakistan held that an order or direction issued by a public authority should reflect reasons for its making or issuance and where the same is lacking, an affectee may demand the necessary reasons, which, in response, would be furnished. Likewise, in the case of “Muhammad Amin Muhammad Bashir Limited v. Government of Pakistan through Secretary Ministry of Finance, Central Secretariat, Islamabad and others” (2015 SCMR 630), the Supreme Court observed as under:-

*“The exercise of any discretionary power must be rational and have a nexus with the objective of the underlying legislation.*

*Arbitrariness is the antithesis of the rule of law. The legislature, when it confers a wide ranging power, must be deemed to have assumed that the power will be, firstly, exercised in good faith, secondly, for the advancement of the objects of the legislation, and, thirdly in a reasonable manner. Section 24A of the General Clauses Act, 1897, reiterates the principle that statutory power is to be exercised "reasonably, fairly, justly and for the advancement of the purposes of the enactment" and further clarifies that an executive authority must give reasons for its decision. Any action by an executive authority which is violative of these principles is liable to be struck down. No other view is permissible." "*

The principles laid down in the aforesaid judgments fully apply to the instant case because the impugned action directly affects the petitioner's constitutionally protected right to travel abroad. The manner in which the impugned reasons have been recorded in the off-loading proforma falls considerably short of the standard contemplated by section 24-A of the General Clauses Act, 1897. The proforma merely contains brief and stereotyped expressions without disclosure of any supporting particulars or objective assessment. The record does not show whether the questions put to the petitioner and his answers thereto were reduced into writing, electronically recorded, video documented or otherwise preserved. There is also nothing on record to indicate whether the petitioner was confronted with any discrepancy in his explanation or was afforded any meaningful opportunity to clarify the concerns allegedly entertained by the immigration staff. Such cryptic recording of reasons may create a superficial appearance of legality, yet it does not satisfy the legal requirement of a reasoned administrative determination. When an action results in immediate restraint upon a citizen's fundamental right to travel abroad, the authority is expected to record at least such minimum particulars which may enable a prudent and reasonable person to understand why the drastic step of off-loading was considered necessary.

**11.** The second ground that the petitioner failed to justify the purpose of his visit suffers from the same legal infirmity. The petitioner specifically asserted that his brother-in-law namely Nasir Farooq resides in Nigeria and is engaged there in business activities including barber



shops and restaurants. Copies of his CNIC and immigration documents are appended with the writ petition. Thus, the petitioner's explanation was neither inherently absurd nor wholly unsupported. If the immigration authorities found such explanation doubtful, they were legally obliged to record the reasons which rendered the explanation unacceptable. However, neither the off-loading proforma nor the report indicates whether the petitioner was questioned regarding the address of his brother-in-law, immigration status, business details, accommodation arrangements or proposed duration of stay. No discrepancy, contradiction or suspicious circumstance has been identified in the record. In absence of such particulars, the bald assertion that the purpose of visit was "not justified" remains a conclusion unsupported by disclosed reasoning. Furthermore, the petitioner's explanation regarding his brother-in-law was also materially relevant to the issue of financial capacity. A traveller intending to stay with a close relative residing abroad may not necessarily require the same financial arrangements as an independent tourist staying in hotels and bearing all expenses personally. The existence of a host abroad could legitimately have a bearing upon the assessment of accommodation, subsistence and financial sufficiency. This Court is not holding that mere assertion of relationship automatically entitled the petitioner to travel without scrutiny. The respondents were fully competent to examine the genuineness of such claim and to reject it if found doubtful on objective grounds. However, what is impermissible is that the respondents ignored the asserted host arrangement altogether and simultaneously relied upon generalized allegations of insufficient funds and unjustified purpose without disclosing any tangible basis for either conclusion.

**12.** It is by now a settled principle of administrative law that discretionary powers vested in public authorities are held in trust and must be exercised within the bounds of legality, fairness and rationality. Discretion does not confer absolute or unfettered authority to act upon subjective impressions, personal suspicions or undisclosed criteria. In

the case of *“Abdul Wahab and another v. Secretary, Government of Balochistan and another”* (2009 SCMR 1354), the Supreme Court emphasized that discretionary powers must be exercised reasonably, fairly and within the scope of law. Relevant excerpt from the said judgment is reproduced below for reference:-

*“No one could be allowed irrespective of the fact who is who to act in an arbitrary, fanciful and whimsical manner and they had got to be judicious, fair and just in taking such decision. We are not persuaded to agree with the learned Additional Advocate General that the question of retention and dispensation 'squarely falls within discretion of department for the reason that the Discretionary power conferred on government should be exercised reasonably and subject to existence of essential conditions, required for exercise of such powers within the scope of law. All judicial, quasi judicial and administrative authorities while exercising mandatory or discretionary jurisdiction must follow the rule of fair exercise of power in a reasonable manner and must ensure dispensation of justice in the spirit of law. Seven instruments that are the most useful in structuring of discretionary power are open plans, open policy statement, open rules, open findings, open reason, open precedents and fair informal procedure. Power to exercise discretion would not authorize such Authorities to act arbitrarily, discriminately and mala fide. They have to act without any ulterior motive.”*

(Underlining is to supply emphasis).

The effect of the above principles is that administrative decisions affecting civil liberties and fundamental rights must be transparent, reviewable and supported by discernible reasons founded upon objective material.

13. The significance of these safeguards becomes even greater in cases involving airport off-loading. Such action is ordinarily taken at the final stage of departure after the passenger has purchased tickets, obtained visa, arranged travel plans, secured leave from employment, reached the airport, completed airline formalities and obtained boarding authorization. The consequences of off-loading may include financial loss, cancellation of travel arrangements, expiry of visa, reputational embarrassment, mental distress and disruption of personal or professional commitments. Therefore, even though off-loading may

formally be categorized as a preventive administrative measure, its civil consequences are undeniably serious. It is precisely for this reason that constitutional law insists upon heightened procedural fairness whenever executive action substantially interferes with personal liberty and freedom of movement.

**14.** For the foregoing reasons, this petition is allowed. The impugned action whereby the petitioner was off-loaded on 31.01.2026 at Sialkot International Airport, Sialkot, is declared to have been taken without lawful justification and in a manner not consistent with the constitutional and legal requirements of fair, transparent and reasoned exercise of administrative authority. Consequently, the said action cannot be sustained in law. It is clarified that the impugned off-loading shall not by itself operate as a continuing restraint upon petitioner's right to travel abroad. In case he intends to undertake foreign travel in future on the basis of valid travel documents and fulfils the applicable legal and immigration requirements, he shall be at liberty to do so subject to lawful scrutiny in accordance with law.

**15.** The petitioner has also asserted that he suffered financial loss, reputational embarrassment and mental agony on account of the impugned action. Since disputed questions relating to assessment of compensation and damages cannot appropriately be adjudicated in the present constitutional proceedings, the petitioner shall, if so advised, be at liberty to avail any other remedy available to him under the law for seeking damages or compensation before the competent forum.

**16.** Before parting with this judgment, it seems apt to issue the following directions for future guidance and to ensure conformity with the requirements of fairness and reasoned administrative action:-

- i. While off-loading a passenger in an appropriate case, the officer concerned shall ensure that the action is founded upon objective material and that brief but meaningful reasons, containing sufficient particulars, are contemporaneously recorded in writing in terms of section 24-A of the General

Clauses Act, 1897. Such reasons should ordinarily disclose, where relevant, the nature of discrepancy noticed by the officer, the material question(s) put to the passenger, the substance of the answers furnished, the objective basis of suspicion formed and the reasons which persuaded the authority to conclude that off-loading was necessary. Wherever practicable, the relevant interview process or interaction should also be appropriately documented or electronically preserved for purposes of transparency and subsequent review.

ii. A copy of the off-loading order/proforma containing recorded reasons shall, as far as practicable, be supplied to the affected passenger at the earliest available opportunity so that he may know the basis of the action taken against him and may avail such remedy as may be available under law.

**(RAHEEL KAMRAN)**  
**JUDGE**

**Approved for reporting**

**Judge**

*Azhar\**